Franciscan Monastery & Gardens in Brookland

Updated Syllabus Means New Student-Chapter Assignments

Dissensus

Reminder: Conduct v. Result Crime

Result Crimes

- Results crime include a forbidden result.
- Homicide, arson, property damage, battery, fraud, some forms of assault, and some sex offenses.

Conduct Crimes

- Conduct crimes just require an act.
- DUI, dangerous driving, theft, burglary, some forms of assault, most sex offenses.

Mistake of Fact

Mens Reas

Hypo: Phone Theft

Hypo: Phone Theft

"A person commits theft of property if they [...] intentionally take or exercises unauthorized control over, or make an unauthorized transfer of an interest in, the property of another person [...]."

Hypos: After a Faculty Meeting

- I mistakenly pick up the Dean's phone, along with all my other belongings.
- I mistakenly think Dean's phone is a personal organizer; I pick up for their use.
- I mistakenly believe that the Dean's phone is my own and pick it up.

MPC

Mens Reas

Mental State	Gloss on MPC Definition
Purposely	Conscious object to engage in the conduct or cause the result
Knowingly	Aware conduct is of particular nature or practically certain the result will occur
Recklessly	Consciously disregards a substantial and unjustifiable risk of elements of offense
Negligently	Should be aware of a substantial and unjustifiable risk of elements of offense

MPC Default Rules

- Higher mental state satisfies lower mental state
- Silence: read in recklessness
- “One for all”: unless otherwise stated, mens rea applies to ALL material elements.
  - *There is some ambiguity, here: what does "material" mean?*

Common Law

Mens Reas

Common Law

Typical Common Law & MPC Mental States

Intentionally = MPC Purposefully

Willfully = MPC Knowingly

Maliciously = MPC Recklessly

Unreasonably = MPC Negligently

But common law judges use these terms in different ways – sometimes the same judge will use a single term in different ways. That is one of the many reasons why most jurisdictions adopt the MPC general part.

Common Law Mistake of Fact When Mens Rea Is Clear

We do know a few things…

- If the mens rea is knowledge, then any honest mistake of fact (even an unreasonable one) is a defense.
- If the mens rea is negligence, then only a *reasonable* mistake of fact is a defense.
- If the statute specifies *strict liability*, then there is no mistake of fact defense.

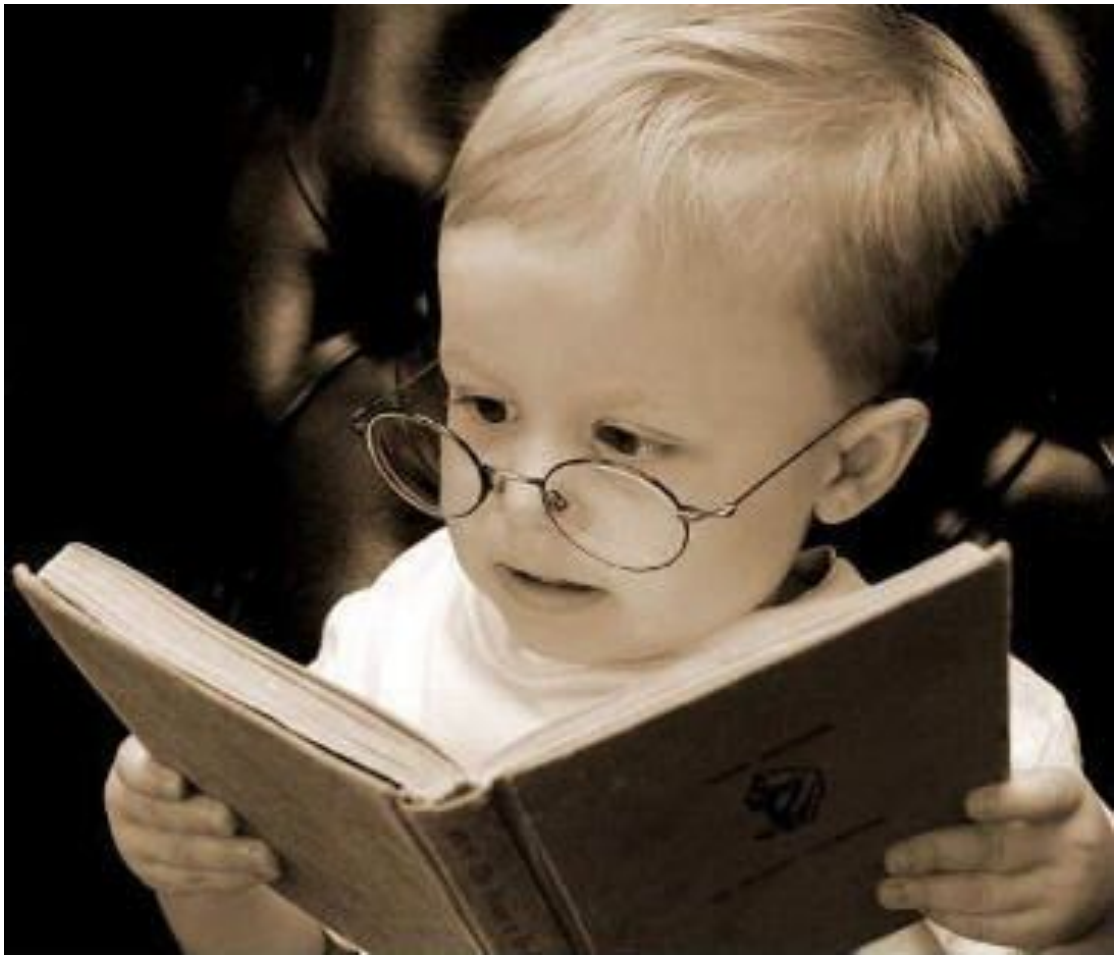
But…

What if it’s not clear to which elements the stated mens rea applies?

What if the statute is silent about mens rea?

Confusion

But there is a method of sorts…



Common Law Mistake of Fact When Scope is Ambiguous

Here is a rough test:

Would the intended act, *if the facts were as the defendant imagined them to be*, be **bad** or **good**?

- If **bad:** expand liability (limit knowledge requirement to fewer elements)
- If **good:** restrict liability (read knowledge requirement in)

Obviously this test is value laden.

Morrissette v. United States (1952)

18 U.S.C. § 641:

Whoever … knowingly converts to his use or the use of another … any … thing of value of the United States …

MPC Hypo

MPC Version. How would this statute be read under the Model Penal Code?

> **2.02(4).** Under the MPC, the “one for all" presumption would apply. “When the law defining an offense prescribes the kind of culpability that is sufficient for the commission of an offense, without distinguishing among the material elements thereof, such provision shall apply to all the material elements of the offense, unless a contrary purpose plainly appears.”

MPC Outcome? How would the case have come out?

> **Same.** Knowingly = honest (even if unreasonable) mistake is a defense.

Rehaif v. United States (2019)

18 U.S.C. § 922(g) [the prohibition]: It shall be unlawful for any person — ... (5) who, being an alien ... illegally or unlawfully in the United States ... to ship or transport in interstate or foreign commerce, or possess in or affecting commerce, any firearm or ammunition; or to receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.

18 U.S.C. § 924(a)(2) [the penalty provision]: Whoever knowingly violates subsection ... (g) ... of section 922 shall be fined as provided in this title, imprisoned not more than 10 years, or both.

Elonis v. United States (2019)

Court holds that **knowledge** standard obtains.

An **honest mistake** is a defense *even if it is unreasonable*.

MPC Hypo

MPC Version. How would this statute be read under the Model Penal Code?

> **2.02(4).** Under the MPC, the “one for all" presumption would apply. “When the law defining an offense prescribes the kind of culpability that is sufficient for the commission of an offense, without distinguishing among the material elements thereof, such provision shall apply to all the material elements of the offense, unless a contrary purpose plainly appears.”

MPC Outcome? How would the case have come out?

> **Same.** Knowingly = honest (even if unreasonable) mistake is a defense.

Elonis v. United States (2019)

18 U.S.C. § 875(c): Whoever transmits in interstate or foreign commerce any communication containing any threat to kidnap any person or any threat to injure the person of another, shall be fined under this title or imprisoned not more than five years, or both.

Mental State?

None!

Prosecution: Only a reasonable about whether posts would be perceived as a threat is a defense.

Defense: An honest mistake–even an *unreasonable* one–is a defense.

Elonis v. United States (2019)

Court holds that, where federal statute is silent, knowledge standard obtains. An unreasonable but honest mistake is a defense.

MPC Hypo

MPC Version. How would this statute be read under the Model Penal Code?

> **§ 2.02(3)** When the culpability sufficient to establish a material element of an offense is not prescribed by law, such element is established if a person acts purposely, knowingly or recklessly with respect thereto.

MPC Outcome? How would the case have come out?

> **Uncertain.** Recklessness = conscious disregard of a substantial and unjustifiable risk that posts would be perceived as a threat & gross deviation from reasonable conduct.

2023 Postscript

Rehaif was subsequently convicted of cyberstalking his former prosecutor, a former girlfriend, and his ex-wife for subsequent conduct under different statutes.

Takeaway

Where a federal offense is silent, read in knowledge standard.

There are complications regarding free expression & state laws.

Mistake of Law

The Doctrine

Ignorance of or mistake about the law is not exculpatory except when:

1. The law itself requires knowledge of illegality.
2. Defendant mistaken about a law that is "collateral" to the law being enforced.
3. Defendant relied on an official empowered to interpret the law. *Reasonable* reliance on “apparent” authority is also allowed.

A Statute Allows for Mistakes of Law

Cheek v. United States (1991)

26 U.S.C. § 7201: "Any person who **willfully** attempts in any manner to evade or defeat any tax imposed by this title or the payment thereof shall, in addition to other penalties provided by law, be guilty of a felony and, upon conviction thereof, shall be fined not more than $100,000 ($500,000 in the case of a corporation), or imprisoned not more than 5 years, or both, together with the costs of prosecution."

Takeaway

Where a statute defines a crime as “willfully” violating a law, that means that an honest mistake of fact is a defense.

When Defendant Is Mistaken About Collateral Law

Long v. State (Del. 1949)

Long was not mistaken about the law prohibiting bigamy. He did not think it was okay to be married to two people at the same time. He was mistaken about the collateral law of marriage & divorce.

If a mistake about a collateral law is reasonable, then it constitutes a defense.

Takeaway

Reasonable mistakes about collateral laws referenced in criminal statutes are a defense.

This is a **negligence** standard with respect to mistakes about the collateral law.

When Defendant Relies on a Mistaken Legal Authority

Cox v. Louisiana (1965)

Statute: Whoever, with the intent of interfering with, obstructing, or impeding the administration of justice, or with the intent of influencing any judge, juror, witness, or court officer, in the discharge of his duty pickets or parades in or near a building housing a court of the State of Louisiana ... shall be fined not more than five thousand dollars or imprisoned not more than one year, or both.

Police: You may protest 101 feet away from the courthouse.

Takeaway

Reliance on “apparent” authority is a defense.

Albertini

18 U.S.C. § 1382

Whoever, within the jurisdiction of the United States, goes upon any military, naval, or Coast Guard reservation, post, fort, arsenal, yard, station, or installation, for any purpose prohibited by law or lawful regulation; or

Whoever reenters or is found within any such reservation, post, fort, arsenal, yard, station, or installation, after having been removed therefrom or ordered not to reenter by any officer or person in command or charge thereof;

Shall be fined not more than $500 or imprisoned not more than six months, or both.

Albertini

Facts: After a protest, a military commandant issues a "bar letter" to Albertini, prohibiting him from entering. He enters nonetheless, and is prosecuted and convicted. The Ninth Circuit reverses the conviction on First Amendment grounds. Albertini resumes protesting. Thereafter, the government successfully petitions for certiorari and obtains a reversal of the Ninth Circuit decision. It then prosecutes Albertini for the protests that occurred in the interval between the initial reversal and the granting of the certiorari petition in the S. Ct.

Issue: The issue is whether Albertini's reliance on the Ninth Circuit's decision immunized him for protests occurring after that decision and before the Supreme Court granted review in the case.

Outcome: The Supreme Court concludes that it does, relying on Due Process and MPC § 2.04(3).

Takeaway

People can rely on court decisions… until appeal is granted.

Not in reading or on exam: Answers to Questions Students Are Asking.

Federal Immunity?

Stephen Miller: “To all ICE officers: You have federal immunity in the conduct of your duties. Anybody who lays a hand on you or tries to stop you or tries to obstruct you is committing a felony. You have immunity to perform your duties, and no one — no city official, no state official, no illegal alien, no leftist agitator or domestic insurrectionist — can prevent you from fulfilling your legal obligations and duties.”

Supremacy Clause

Derived from the 1890 Supreme Court case *In re Neagle*, this doctrine protects federal agents from state prosecution only if they meet a two-part test:

Official Duties: The agent must have been acting within the scope of their lawful federal authority.

Reasonable Necessity: The agent must have had an objectively reasonable belief that their actions were "necessary and proper" to carry out those duties.

Exceptions: Immunity does not apply if the agent's conduct was egregious, unauthorized, or went beyond the scope of their federal mission (e.g., plainly unjustified violence).

Federal Removal

If a state brings criminal charges against an ICE agent for actions taken "on the clock," the agent can move (remove) the case from state court to federal court under 28 U.S.C. § 1442.

Prosecution: The state prosecutor still handles the case, and state law still applies, but it is heard by a federal judge and a federal jury.

Pardon Power: Because the charges are for state offenses, the President cannot pardon a convicted agent, regardless of whether the trial happens in a federal or state courtroom.

Types of Immunity

Qualified Immunity: This applies only to civil lawsuits for damages, shielding agents unless they violated "clearly established" constitutional rights. It does not protect against criminal charges.

Absolute Immunity: This is generally reserved for judges and prosecutors performing core functions; the Supreme Court has consistently held that it does not extend to law enforcement officers for investigative or enforcement activities.

States Are Not Powerless

Minnesota: State officials are investigating the fatal shooting of a woman by an ICE agent, rejecting claims of absolute immunity.

"We have heard repeatedly over the past few weeks that there is absolute immunity for ICE agents. This is completely wrong. There is no absolute immunity for ICE agents who violate Minnesota law. The Supremacy Clause of the United States Constitution does not erase state criminal law."

States Are Not Powerless

Illinois: The Cook County State's Attorney's Office announced new protocols specifically to prosecute immigration agents who break the law.

"No one is above the law — including both ICE agents and prosecutors. If a federal law enforcement agent commits a crime, my office will not hesitate to act, in accordance with state law. This protocol establishes clear, legally sound guidelines to ensure we have a responsible and effective path to pursue accountability."

Up Next: Public Welfare Offenses

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